

BHASKAR PAUL



says, "Right now, intelligence is the least sought after in the police department due to lack of recognition and rewards."

Needed urgently are radical solutions to get the intelligence agencies to work effectively and cohesively. Some experts advocate reforms at the apex, especially in Narayanan's role who currently is burdened both with external and internal threats and may not have the time to give the undivided attention that both need. Others call for major structural changes that include setting up of a national intelligence and security authority which will also have executive functions, not just advisory, to co-ordinate and oversee agencies involved in intelligence, counter-terror and investigation. This could also involve having a separate all India intelligence service much like the IAS or IPS. Others want the Home Ministry to be converted into a mammoth homeland security ministry with a much wider mandate that would bring all agencies

ing internal security. The Home Ministry was already working on the draft, which mainly aimed at amending the National Security Act, 1980. The draft envisages the constitution of a national security authority which will take charge of administration and supervision of all investigations of terrorism-related crimes across the country. The Authority, which would have a chairman and five members, would also be responsible for prosecuting the accused.

Each state will have a security commissioner—preferably a high-ranking IPS officer—reporting directly to the authority. The draft also provides for stringent bail provisions, fast-track courts, death penalty, and allows the state to freeze assets as well as the bank accounts of terrorism-accused and their overt and covert sympathisers and sponsors. It also provides for punishment for those found guilty of raising funds or sponsoring terrorist acts, conspiracy, harbouring terrorists or threatening witnesses. There has been stiff resistance from states who have said that it impinges on their preserve (law and order is a state subject).

The Mumbai attacks have instilled a sense of urgency into the process. The draft will soon be put before the Cabinet for approval, following which the Government may introduce a bill in the coming session of Parliament, or it may just go in for an ordinance.

Others want to make the existing law more stringent and bring back some of the provisions of the Prevention of Terrorism Act (POTA) which had been repealed by the UPA Government. True, POTA and its replicas in Maharashtra could lead to gross misuse, especially to any community that is targeted. The tussle is mainly over provision of custodial detention of suspects for a period of time—24 hours under current law versus months in the proposed ones—and also whether confessions made before policemen should be made admissible in courts.

Some advocate moving terror crimes from the state list to the Union or the concurrent list. Senior police officials argue that this change in listing in the Constitution can lead to the enactment of an stringent law against terrorism with more severe punishments being meted out than now without allowing advocacy groups raising concerns about civil liberties to come in the way. To avoid situations where persons facing death sentences for terrorist crimes like Afzal Guru from delaying their execution, experts recommend amending the law to do away the clemency provision for such cases.

The Mumbai terror assaults exposed the



including intelligence, immigration, customs and coast guard under it. Each of these options have their pros and cons. They must be debated and executed quickly.

Strong arm of the law

What Manmohan is pushing for is a more modest Central Investigating Agency to deal with cases having inter-state ramifications and affect-